

AGREEMENT FOR SANDALWOOD TREE PLANTATION AND REVENUE SHARING

This Agreement is made and executed on this ___ day of _____, 20___, at _____, by and among:

1. Dynamic Earth Pvt. Ltd., a private limited company incorporated under the Companies Act, 2013, having its registered office at Ganaur, District Sonapat, Haryana (hereinafter referred to as the “Seller”); and

3. Mr. Ravi, S/o Shri Surender Singh, residing at Jassia, District Rohtak, Haryana, UID No. 4185-9371-7325, Mobile: 8860210100 (hereinafter referred to as the “Buyer”).

The Seller, and the Buyer shall hereinafter collectively be referred to as the “Parties” and individually as a “Party.”

RECITALS

A. The Seller is the absolute owner and lawful possessor of certain agricultural land situated in District Katni, Madhya Pradesh (hereinafter referred to as the “Project Land”).

B. The Buyer, desiring to contribute towards environmental and afforestation initiatives, has voluntarily contributed funds for the plantation of one (1) sandalwood tree and wishes to share in the revenue from the eventual harvest.

1. Tree Buyer and Consideration

The Buyer agrees to pay a sum of INR (Amount in words) towards the plantation of one (1) sandalwood tree under the project. The contribution is treated as an investment from buyer with a revenue-sharing benefit, not a security under any financial law.

2. Plantation, Maintenance, and Management

The Seller shall plant, irrigate, nourish, and maintain the tree for 15 years; ensure proper protection, pruning, pest control, and overall care; maintain a 20% additional plantation buffer for mortality replacement; and maintain digital and physical records of each tree's location and health.

3. Land Usage and Possession

The Seller will utilize the Project Land for sandalwood plantation and related infrastructure for 15 years. Ownership of the land shall always remain with the Seller, and the buyer shall have visiting rights only.

4. Identification and Record

Each tree shall bear a unique Tree Identification Number linked to the Buyer. The Seller shall issue a Certificate of Plantation and Beneficial Interest within 90 days of planting.

5. Harvest and Sale

The Seller shall undertake harvesting and sale only to government-authorized buyers as per the Indian Forest Act, Wildlife (Protection) Act, and applicable State regulations. The sale shall be through an authorized government auction or channel approved by the Forest Department.

6. Revenue Sharing

Upon sale of the matured tree, the net sale proceeds (after deduction of statutory charges, auction fees, taxes, operational ,transportation and any other ancillary costs related to sale of the matured tree) shall be shared as follows: Buyer: 75%, Seller: 25%. Payment to the Buyer shall be made within 90 days from the date of receipt of sale proceeds.

7. Equitable Interest

The Buyer shall hold an equitable and beneficial interest in the specific tree(s) identified under this Agreement until the sale. Ownership of the land or any other plantation asset shall not pass to the Buyer.

8. No Interference

The Buyer shall have no management control over the plantation or land and may visit the site only with prior written permission and at scheduled intervals.

9. Risk, Force Majeure, and Replacement

The Seller shall not be liable for loss or damage caused by natural calamities, pandemics, government restrictions, or acts of God. In case of loss of any planted tree, the Seller shall provide a same-age replacement tree under its buffer plantation program.

10. Insurance

The Seller may obtain crop or plantation insurance to cover natural or accidental losses. The premium cost may be adjusted from the operational fund.

11. Taxes and Statutory Deductions

All applicable taxes, including income tax or TDS on revenue disbursement to the Buyer, shall be deducted and deposited as per prevailing laws.

12. Succession and Nomination

The Buyer may nominate a legal heir or nominee to receive the revenue in the event of the Buyer's demise, by providing a written nomination form duly acknowledged by the Seller.

13. Accounts and Audit

The Seller shall maintain transparent accounts of plantation activities and make them available for inspection or audit by statutory authorities.

14. Indemnity

Each Party agrees to indemnify and hold harmless the others from any loss, liability, or damage arising due to their own breach, negligence, or misrepresentation.

15. Termination

This Agreement may be terminated by mutual consent or written notice in case of breach of material terms, subject to settlement of all existing rights and obligations.

16. Dispute Resolution and Jurisdiction

Any dispute shall be first settled through mutual negotiation. If unresolved, it shall be referred to arbitration under the Arbitration and Conciliation Act, 1996, with venue at Sonipat, Haryana, and language in English. Courts at Sonipat, Haryana, shall have exclusive jurisdiction.

17. Site Visit and Buyer Privileges

The Buyer shall be entitled to one complimentary site visit (2 nights/3 days) with lodging and breakfast, subject to advance scheduling and availability.

18. Notices

All notices under this Agreement shall be in writing and delivered by registered post, courier, or email to the addresses mentioned herein.

19. Entire Agreement

This Agreement constitutes the entire understanding between the Parties and supersedes all prior communications or understandings, whether oral or written.

IN WITNESS WHEREOF, the Parties hereto have executed this Agreement on the date first written _____ above.

Party	Signature	Name & Designation
Dynamic Earth Pvt. Ltd. (Seller)	_____	_____
Buyer – Mr. Ravi	Seller	Buyer

Date: _____

Place: _____

Witnesses:

1. _____ (Name & Signature)
2. _____ (Name & Signature)